

1 ENGROSSED SENATE
2 BILL NO. 592

By: Reinhardt of the Senate

3 and

4 Moore of the House

5
6 An Act relating to alcoholic beverages; amending 37A
7 O.S. 2021, Section 3-115, which relates to withdrawal
8 of beer from retailer's stock; allowing certain
9 distributors to issue certain credit to certain
10 retailer for certain removal of beer or cider;
11 establishing certain requirements for certain credit
12 to be made; limiting certain number of credits in
13 calendar year; limiting certain amount of each
14 credit; prohibiting certain credit from being a
15 refund; prohibiting certain credit from being
16 considered consignment; amending 37A O.S. 2021,
17 Section 3-123, as amended by Section 3, Chapter 94,
18 O.S.L. 2023 (37A O.S. Supp. 2025, Section 3-123),
19 which relates to sale of alcoholic beverages to
20 wholesalers, beer distributors, or retailers;
21 excluding certain licensees from certain inducement
22 provisions; excluding certain actions from being
23 deemed an inducement or discriminatory action in
24 certain situations; construing certain provisions;
allowing certain licensee to request certain
advertising from certain manufacturer; prohibiting
certain entities from reimbursing certain licensees;
defining term; updating statutory language; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 3-115, is
amended to read as follows:

Section 3-115. A. To assure and control quality, a beer
distributor or a holder of a small brewer self-distribution license

1 or brewpub self-distribution license, at the time of a regular
2 delivery, may withdraw with the permission of the retailer, a
3 quantity of beer or cider in undamaged original packaging from the
4 retailer's stock if:

5 1. The beer distributor or holder of a small brewer self-
6 distribution license or brewpub self-distribution license replaces
7 the stock with beer or cider of equivalent value brands, quantities,
8 packaging and alcohol by volume as the beer or cider withdrawn; or

9 2. The stock is withdrawn before the date, or immediately after
10 the date, considered by the brewer of the product to be the date the
11 product becomes inappropriate for sale to a consumer.

12 B. The provisions of this section shall not apply to beer or
13 cider that:

14 1. Has suffered damage at the retail licensee's location,
15 regardless of the date upon which the product becomes inappropriate
16 for sale to a consumer. Beer distributors, small brewer self-
17 distributors and brewpub self-distributors are prohibited from
18 giving a refund for or replacing beer or cider that was damaged
19 while in the possession of the retail licensee. Retail licensees
20 are prohibited from requesting or requiring the beer distributor,
21 small brewer self-distributor and brewpub self-distributor to remove
22 such damaged product as a condition of continued business with the
23 retail licensee; or
24

1 2. Has a date for recommended use that expired prior to October
2 1, 2018. Retail licensees and brewers are prohibited from
3 requesting or requiring the beer distributor, small brewer self-
4 distributor and brewpub self-distributor to remove such expired beer
5 or cider as a condition of continued business with the retail
6 licensee or brewer.

7 C. Notwithstanding the provisions of this section, a beer
8 distributor, small brewer self-distributor, or brewpub self-
9 distributor may issue a credit to a retailer for beer or cider
10 removed from the retailer's premises pursuant to subsection A of
11 this section if the distributor has previously made two quality
12 control replacements to the same retailer for the same brand,
13 packaging, and alcohol by volume for the beer or cider within one
14 (1) calendar year. The credit shall:

- 15 1. Only be given once per calendar year per retailer;
16 2. Be limited to a total of four cases of beer or cider;
17 3. Not be a refund and may only be applied to future beer or
18 cider purchases; and
19 4. Not be considered a consignment sale or an unlawful
20 inducement, rebate, or thing of value.

21 D. A consignment sale of beer ~~is~~ shall not be authorized under
22 this section.
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1 SECTION 2. AMENDATORY 37A O.S. 2021, Section 3-123, as
2 amended by Section 3, Chapter 94, O.S.L. 2023 (37A O.S. Supp. 2025,
3 Section 3-123), is amended to read as follows:

4 Section 3-123. A. It shall be unlawful for any person
5 privileged to sell alcoholic beverages to wholesalers, beer
6 distributors or retailers:

7 1. To discriminate, directly or indirectly, in price between
8 one wine and spirits wholesaler and another wine and spirits
9 wholesaler, when that manufacturer has not designated a single wine
10 and spirits wholesaler, or between one retailer and another retailer
11 purchasing alcoholic beverages bearing the same brand or trade name
12 and of like age and quality, unless otherwise provided by law; or

13 2. To grant, directly or indirectly, any discount, rebate, free
14 goods, allowance or other inducement.

15 B. The ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE)
16 Commission is hereby authorized to promulgate rules which are
17 necessary to carry out the purpose of this section and to prevent
18 its circumvention by offering or giving of any rebate, allowance,
19 free goods, discount or any other thing or service of value;
20 provided, the posting or invoicing of charges per order for
21 processing minimum orders or per case for the handling or repacking
22 of goods by wine and spirits wholesalers and beer distributors for
23 sales in less than full case lots shall not constitute a violation
24 of this section.

1 C. For the violation of any provision of this section or of any
2 rule duly promulgated under this section, the ABLE Commission may
3 issue a written warning, fine, suspend or revoke a license as
4 follows:

5 1. For a first offense, a written warning which may be
6 accompanied by a fine not to exceed Five Thousand Dollars
7 (\$5,000.00);

8 2. For a second offense, not exceeding ten (10) days'
9 suspension of license; and

10 3. For a third offense, the ABLE Commission shall revoke the
11 license.

12 Provided, however, prior to suspending or revoking a license,
13 the ABLE Commission shall first provide written notice to a licensee
14 of the violation and a period of ninety (90) days following such
15 notice to cure or remedy such violation. For purposes of this
16 section, a "second offense" and "third offense" shall mean
17 violations that are related to or arising out of and occurring
18 within twelve (12) months of the "first offense".

19 D. For purposes of this section, and except as otherwise
20 provided in subsection E of this section, "inducement" means
21 directly or indirectly offering, selling, trading, giving or
22 furnishing any discount, free goods, electronic or nonelectronic
23 refrigerated equipment, barrels, tubs, fixtures, dispensing
24 equipment, outdoor electric or nonelectric advertising structure

1 displaying the retailer's name, permanent shelving, supplies, gifts,
2 prizes, instantly redeemable coupons, premiums, retailer rebates,
3 services of any employee including, but not limited to, affixing
4 price labels or tags, routinely stocking product on shelves other
5 than the stocking of cold boxes, paying a third party for entering
6 product and price information into a retailer's computer system,
7 portal, website, spreadsheet or third-party system, handling product
8 that was not sold to the retailer by the licensee, paying a slotting
9 fee, selling on consignment, operating a retailer's cash register,
10 conducting janitorial services, providing decorations, samples of
11 alcoholic beverages, personal property or other inducement or thing
12 of value to any retail spirit, retail beer, retail wine, beer and
13 wine, mixed beverage, caterer, bottle club or special event
14 licensee, wine and spirits wholesaler or beer distributor, their
15 agents or employees.

16 E. It shall not be deemed an inducement for a brewer, beer
17 distributor, small brewer self-distributor or brewpub self-
18 distributor to voluntarily take the following merchandising actions
19 with the permission of the retail licensee:

20 1. Furnish point-of-sale advertising materials and consumer
21 advertising specialties, as those terms are defined in 27 C.F.R.,
22 Section 6.84 and in compliance with the other limits and
23 restrictions provided in 27 C.F.R., Section 6.84;

1 2. Give or sell product displays, including, but not limited
2 to, barrels and tubs, provided that the value of such displays does
3 not exceed the limits and restrictions provided in 27 C.F.R.,
4 Section 6.83;

5 3. Build product displays, accessible to the customer for the
6 product being delivered by the beer distributor;

7 4. Affix pricing to the shelf strip or product display for the
8 product being delivered by the beer distributor, small brewer self-
9 distributor or brewpub self-distributor, or brewed by the brewer;

10 5. Routinely stock and restock shelves and cold boxes and
11 rotate product that has been sold to the retail licensee by the beer
12 distributor, small brewer self-distributor or brewpub self-
13 distributor, or brewed by the brewer;

14 6. Periodically perform product resets, with permission of the
15 retail licensee, pursuant to a provided shelf plan or shelf
16 schematic;

17 7. Furnish things of value to a temporary retailer, as defined
18 in 27 C.F.R., Section 6.85;

19 8. Sell equipment or supplies to a retail licensee, provided
20 the equipment or supplies are sold at a price not less than the cost
21 to the industry member and payment is collected within thirty (30)
22 days of the sale;

23 9. Install dispensing accessories at the retail location, as
24 long as the retailer bears the cost of installation including

1 equipment; or furnish, give or sell coil cleaning services to a
2 retailer;

3 10. Withdraw quantities of beer or cider in undamaged, original
4 packaging from the retail licensee's stock, provided the beer
5 distributor, small brewer self-distributor, brewpub self-distributor
6 or brewer sold such beer, directly or indirectly, to the retail
7 licensee and such removal is otherwise permitted under Section 3-115
8 of this title; provided, however, replacing with beer or cider of
9 equivalent value shall not be considered a consignment sale;

10 11. Provide mail-in rebates for beer, cider and nonalcoholic
11 beverage merchandise items, funded by the brewer and redeemed by the
12 brewer, either by itself or through a third-party fulfillment
13 company, for a discount or rebate on the beer, cider or nonalcoholic
14 item;

15 12. Provide a recommended shelf plan or shelf schematic to a
16 retail licensee for all or any portion of the inventory sold by the
17 retail licensee;

18 13. Furnish or give a sample of beer or cider to a retailer who
19 has not purchased the brand from that brewer, beer distributor,
20 small brewer self-distributor or brewpub self-distributor within the
21 last twelve (12) months, provided that the brewer, beer distributor,
22 small brewer self-distributor or brewpub self-distributor may not
23 give more than thirty-six (36) ounces of any brand of beer or cider
24 to a specific retailer;

1 14. Furnish or give newspaper cuts, mats or engraved blocks for
2 use in retailers' advertisements;

3 15. Package and distribute beer or cider in combination with
4 other nonalcoholic items for sale to consumers;

5 16. Give or sponsor educational seminars for employees of
6 retailers either at the brewer, beer distributor, small brewer self-
7 distributor or brewpub self-distributor's premises or at the
8 retailer's establishment, including seminars dealing with use of a
9 retailer's equipment, training seminars for employees of retailers
10 or tours of the brewer, beer distributor, small brewer self-
11 distributor, or brewpub self-distributor's plant premises, provided
12 that the brewer, beer distributor, small brewer self-distributor or
13 brewpub self-distributor shall not pay the retailer for the
14 employees' travel, lodging or other expenses in conjunction with an
15 educational seminar but may provide nominal hospitality during the
16 event;

17 17. Conduct tasting or sampling activities at a retail
18 establishment and purchase the products to be used from the retailer
19 so long as the purchase price paid does not exceed the ordinary
20 retail price; provided, a beer distributor shall not be required to
21 provide labor for such sampling activities;

22 18. Offer contest prizes, premium offers, refunds and like
23 items directly to consumers so long as officers, employees and
24 representatives of brewers, beer distributors, small brewer self-

distributors, brewpub self-distributors and licensed retailers are excluded from participation;

19. List the names and addresses of two or more unaffiliated retailers selling the products of a brewer, beer distributor, small brewer, small brewer self-distributor or brewpub self-distributor in an advertisement of such brewer, beer distributor, small brewer, small brewer self-distributor or brewpub self-distributor so long as the requirements of 27 C.F.R., Section 6.98 are satisfied, considering applicable guidance issued by the United States Department of the Treasury Alcohol and Tobacco Tax and Trade Bureau; provided, nothing in the Oklahoma Alcoholic Beverage Control Act shall prohibit a retail, mixed beverage, on-premises beer and wine, public event, special event, charitable auction, charitable alcoholic beverage event, or complimentary beverage licensee from communicating with a brewer, beer distributor, small brewer, small brewer self-distributor or brewpub self-distributor on social media or sharing media on the social media page or site of a brewer, beer distributor, small brewer, small brewer self-distributor or brewpub self-distributor. A retail, mixed beverage, on-premises beer and wine, public event, special event, charitable auction, charitable alcoholic beverage event, or complimentary beverage licensee may request free social media advertising from a brewer, beer distributor, small brewer, small brewer self-distributor or brewpub self-distributor; provided, nothing in this section shall prohibit a

1 brewer, beer distributor, small brewer, small brewer self-
2 distributor or brewpub self-distributor from sharing, reposting or
3 forwarding a social media post by a retail, mixed beverage, on-
4 premises beer and wine, public event, special event, charitable
5 auction, charitable alcoholic beverage event, or complimentary
6 beverage licensee, as long as the sharing, reposting or forwarding
7 of the social media post does not contain the retail price of any
8 alcoholic beverage. No brewer, beer distributor, small brewer,
9 small brewer self-distributor or brewpub self-distributor shall pay
10 or reimburse a retail, mixed beverage, on-premises beer and wine,
11 public event, special event, charitable auction, charitable
12 alcoholic beverage event, or complimentary beverage licensee,
13 directly or indirectly, for any social media advertising services.
14 No retail, mixed beverage, on-premises beer and wine, public event,
15 special event, charitable auction, charitable alcoholic beverage
16 event, or complimentary beverage licensee shall accept any payment
17 or reimbursement, directly or indirectly, for any social media
18 advertising service offered by a brewer, beer distributor, small
19 brewer, small brewer self-distributor or brewpub self-distributor.
20 For purposes of this paragraph, "social media" means a service,
21 platform or site where users communicate with one another and share
22 media, such as pictures, videos, music and blogs, with other users
23 free of charge; or
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1 20. Entering product and price information into a retailer's
2 portal, website, spreadsheet or third-party system. A brewer may
3 pay for a third-party system that provides data and pricing services
4 to the brewer or a beer distributor.

5 F. It shall not be deemed an inducement for a brewer, beer
6 distributor, small brewer self-distributor ~~or~~, brewpub self-
7 distributor, manufacturer, nonresident seller, or a wine and spirits
8 wholesaler to engage in the following marketing activities, provided
9 that the brewer, beer distributor, small brewer self-distributor ~~or~~,
10 brewpub self-distributor, manufacturer, nonresident seller, or a
11 wine and spirits wholesaler shall not pay the retailer's travel
12 costs other than those for local transportation or lodging:

13 1. Provide tickets to a retailer for a sporting or
14 entertainment event so long as a representative of the brewer, beer
15 distributor, small brewer self-distributor ~~or~~, brewpub self-
16 distributor, manufacturer, nonresident seller, or a wine and spirits
17 wholesaler attends the event with the retailer;

18 2. Provide food and beverage to a retailer for immediate
19 consumption:

- 20 a. at a meeting at which the primary purpose is the
21 discussion of business,
22 b. at a convention when the food and beverages are
23 offered to all participants, or
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1 c. at a sports or entertainment event that the
2 representatives of a brewer, beer distributor, small
3 brewer self-distributor ~~or~~, brewpub self-distributor,
4 manufacturer, nonresident seller, or a wine and
5 spirits wholesaler attend with the retailer;

6 3. Participate in retailer association activities by engaging
7 in the following actions:

- 8 a. displaying products at a convention or trade show,
9 b. renting display booth space if the rental fee is the
10 same as paid by all exhibitors at the event,
11 c. providing its own hospitality which is independent
12 from association-sponsored activities,
13 d. purchasing tickets to functions and paying
14 registration fees if the payments or fees are the same
15 as paid by all attendees, participants or exhibitors
16 at the event, or
17 e. making payments for advertisements in programs or
18 brochures issued by retailer associations at a
19 convention or trade show; or

20 4. Giving or selling outdoor signs to a retailer so long as the
21 following requirements of 27 C.F.R., Section 6.102 are satisfied:

- 22 a. the sign bears conspicuous and substantial advertising
23 matter about the product or the brewer, beer
24 distributor, small brewer self-distributor ~~or~~, brewpub

1 self-distributor, manufacturer, nonresident seller, or
2 a wine and spirits wholesaler which is permanently
3 inscribed or securely affixed,

4 b. the retailer is not compensated, directly or
5 indirectly, such as through a sign company, for
6 displaying the signs, and

7 c. a permanent outdoor sign does not contain the
8 retailer's name.

9 G. It shall not be deemed an inducement or a discriminatory
10 action for a manufacturer, nonresident seller, or wine and spirits
11 wholesaler to voluntarily take the following merchandising actions
12 with the permission of the retail licensee:

13 1. Furnish point-of-sale advertising materials and consumer
14 advertising specialties as defined and in compliance with the
15 provisions of 27 C.F.R., Section 6.84;

16 2. Give or sell product displays including, but not limited to,
17 barrels and tubs, provided that the value of such displays does not
18 exceed the limits set forth in the provisions of 27 C.F.R., Section
19 6.83;

20 3. Build product displays, accessible to the customer for the
21 product being delivered by the wine and spirits wholesaler;

22 4. Furnish or give newspaper cuts, mats, or engraved blocks for
23 use in retailers' advertisement;
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1 5. Package and distribute wine and spirits in combination with
2 other nonalcoholic items for sale to consumers;

3 6. Give or sponsor educational seminars for employees of
4 retailers either at the wine and spirits wholesaler's premises or at
5 the retailer's establishment, including seminars dealing with use of
6 a retailer's equipment, training seminars for employees of
7 retailers, or tours of the manufacturer's, nonresident seller's, or
8 wine and spirits wholesaler's premises provided that the
9 manufacturer, nonresident seller, or wine and spirits wholesaler
10 shall not pay the retailer for the employee's travel, lodging, or
11 other expenses in conjunction with such seminar or tour. Such
12 manufacturer, nonresident seller, or wine and spirits wholesaler may
13 provide nominal hospitality during such seminar or tour;

14 7. Conduct tasting or sampling activities at a retail
15 establishment and purchase from the retailer the products to be used
16 so long as the price paid does not exceed the ordinary retail price.
17 A wine and spirits wholesaler shall not be required to provide labor
18 for such tasting or sampling activities;

19 8. Offer contest prizes, premium offers, refunds, and like
20 items directly to consumers so long as officers, employees, and
21 representatives of manufacturers, nonresident sellers, wine and
22 spirits wholesalers, and licensed retailers are excluded from
23 participation; and

1 9. List the names and addresses of two or more unaffiliated
2 retailers selling the products of a manufacturer, nonresident
3 seller, or wine and spirits wholesaler in an advertisement of such
4 entity so long as such advertisement is in compliance with the
5 provisions of 27 C.F.R., Section 6.98 and shall consider applicable
6 guidance issued by the United States Department of the Treasury
7 Alcohol and Tobacco Tax and Trade Bureau.

8 H. It shall not be deemed an inducement or a discriminatory
9 action for a brewer, beer distributor, small brewer self-
10 distributor, brewpub self-distributor, or a wine and spirits
11 wholesaler to establish individualized servicing and delivery
12 schedules for its retailers based on each retailer's actual needs,
13 including, without limitation, on the basis of the retailer's sales
14 volume.

15 I. Nothing in the Oklahoma Alcoholic Beverage Control Act shall
16 prohibit a retail, mixed beverage, on-premises beer and wine, public
17 event, charitable auction, charitable alcoholic beverage event, or
18 complimentary beverage licensee from communicating with a
19 manufacturer, nonresident seller, or wine and spirits wholesaler on
20 social media or from sharing media on the social media page or site
21 of a manufacturer, nonresident seller, or wine and spirits
22 wholesaler. A licensee may request free social media advertising
23 from a manufacturer, nonresident seller, or wine and spirits
24 wholesaler. Nothing in this subsection shall prohibit a

1 manufacturer, nonresident seller, or wine and spirits wholesaler
2 from sharing, reposting, or forwarding a social media post by a
3 licensee as long as such social media post does not contain the
4 retail price of any alcoholic beverage. No manufacturer,
5 nonresident seller, or wine and spirits wholesaler shall pay or
6 reimburse a licensee for any social media advertising services and
7 no licensee shall accept any such payment. For purposes of this
8 subsection, "social media" means a service, platform, or site where
9 users communicate with one another and share media, such as
10 pictures, videos, music, and blogs, with other users free of charge.

11 SECTION 3. This act shall become effective November 1, 2026.

12 Passed the Senate the 25th day of March, 2026.

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Presiding Officer of the Senate

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16 Passed the House of Representatives the ____ day of _____,
17 2026.

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Presiding Officer of the House
of Representatives

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